Gmail **Stephen Cooke <stephencooke.c@gmail.com>**

Re: Update regarding lawyer

10 messages

Stephen Cooke <stephencooke.c@gmail.com> Thu, May 16, 2024 at 9:58 PM
To: Hugo Loneragan <hugo@resolveforensic.com.au>

Hi Hugo,

Trust all is well. Good call yesterday with Matthew, Ramsden Family Law and I have decided to switch lawyers.

I'll likely arrange a quick call next week for introductions and discussion regarding what we need to request from the other side as a starting point. Matthew said he would make some suggestions as well.

Enjoy your weekend and will talk next week.

Stephen

On Mon, 13 May 2024, 8:19 pm Stephen Cooke, <stephencooke.c@gmail.com> wrote:

> Good evening Hugo,
>
> I hope this email finds you well.
>
> Please find the attached signed proposal.
>
> Best regards,
>
> Stephen
>
> Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]
>
> On Mon, May 13, 2024 at 4:18 PM Hugo Loneragan <hugo@resolveforensic.com.au> wrote:
>
> > Dear Stephen,
> >
> > Thank you for your email and for access to the selection of documents.
> >
> > We attach our letter of engagement and invoice for retainer on account. Please review and, if all in order, please complete the signing page and attend to remittance of the retainer.
> >
> > I look forward to working with you and your lawyers to help you prepare for the upcoming mediation on 18 June 2024.
> >
> > Regards,
> >
> > **Hugo Loneragan**
> > Managing Principal
> >
> > hugo@resolveforensic.com.au

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Mobile: +61 488 776 682

Level 21, 8 Chifley Square
Sydney NSW 2000
GPO Box 4281 Sydney NSW 2001

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On 13 May 2024, at 3:18 AM, Stephen Cooke <stephencooke.c@gmail.com> wrote:

Hi Hugo,

I left you a voicemail.

I have talked to another firm this morning, Ramsden Lawyers. I have a call scheduled later in the week to discuss my matter.

In the interim; please see link below to my self hosted Nextcloud;
URL: https://cloud.cantenna.xyz/
Login: forensic
Password: sMmN25?b1B

Your going to want to inspect this section of the share;
<image.png>

Notable items for you to review are:

Requests to modify home loan:
https://cloud.cantenna.xyz/s/YZidM9QWF7jYNMs

Request to modify | x4 Interest Rate Notices Rocket Repay Home Loan 037-149 51-2919
https://cloud.cantenna.xyz/s/d88zJknrbLtGC5e

f) Heather Disclosures April 9 2024
https://cloud.cantenna.xyz/s/kJgaS3F5DXdN8Re
**There is quite a bit to look at here. My earlier email, when I mention Heather stated income doesn't quite give with her disclosures provided, see;
https://cloud.cantenna.xyz/s/oiA7myxMmNLdspn
7.3.1 Newcastle Heart Service Fees - Jan 23 to Jan 24 Stephen.xlsx

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

On Sun, May 12, 2024 at 11:04 AM Stephen Cooke <stephencooke.c@gmail.com> wrote:

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> After our conversation and subsequent discussions with Jacqueline and another lawyer, I'm contemplating changing legal representation. To recap, you recommended focusing on accounts where I'm named as having interest, particularly bank statements related to the marital home dating back to its purchase in 2019. However, I believe we currently lack statements dating back this far.
>
> Additionally, I'm troubled by several issues highlighted during our recent call with Jacqueline:
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> a) Jacqueline indicated she's unable to share statements concerning the condo property due to conditions she agreed to, which is concerning.

b) It appears the disclosures she does have for the condo are insufficient (limited to partials for the last 12 months) and knowing this, boxed me into a mediation date of June 18 anyways.
c) She seemed to downplay her actions regarding limited disclosure, citing the opposing side's lawyer's is very good - operating within the gray areas of the law (words to that effect), which worries me about her judgment.

Moreover, there are concerns you echoed that I had already considered prior to our meeting.

I consulted with another firm on Friday, and they offer reasonable rates and seem competent. Do you know of any lawyers who charge between $400.00 and $600.00 per hour?

Furthermore, I need clarity from you regarding the strategy for forensic accounting of the condo property prior to mediation.

Let's discuss these matters on Monday. I deeply appreciate your guidance on financial matters.

Warm regards,

Stephen

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> Thanks Stephen,
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> I will look at this. Is this document dated?
>
> In order to identify any irregular transactions relating to the loan accounts, you should obtain statements for all loan accounts and related bank accounts (offset accounts) for the entire period of each loan. (Note: If you don’t have concerns about earlier years you could exclude those years).
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> I estimate that this preliminary exercise for all accounts for all years could take 10-15 hours and cost $6,000 to $9,000 plus GST. This is based on a blended hourly rate of $600. It may be that a restricted version looking at a limited time period could be completed in half that time. In any event, when the documents are received, I can provide a better estimate for each task.
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> Let’s discuss Monday.
>
> Hugo Loneragan
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> > On 10 May 2024, at 12:10 PM, Stephen Cooke <stephencooke.c@gmail.com> wrote:
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> > Hi Hugo,
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> > As discussed, please find the attached "Game Plan" document Heather tried to get me to sign prior to separation.

Best regards,

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<GamePlan_11062023_103510-1.pdf>

Stephen Cooke <stephencooke.c@gmail.com> Sun, May 19, 2024 at 9:30 PM
To: Hugo Loneragan <hugo@resolveforensic.com.au>

Hi Hugo,

In the effort of time, we're going to forgo an introductory call with Ramsden for now.

Can you clearly articulate what financial information you would like to see? You mentioned there was a lot of activity in the business account post separation? What financial disclosures do you require?

Regards,

Stephen

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

[Quoted text hidden]

Hugo Loneragan <hugo@resolveforensic.com.au> Mon, May 20, 2024 at 10:45 PM
To: Stephen Cooke <stephencooke.c@gmail.com>

Stephen,

As requested, I **attach** a preliminary document request list identifying those core documents I would seek in the first instance.

The purpose of obtaining these is to establish the flow of funds between bank accounts for the withdrawal transactions you have already identified in the home loan accounts, and also to establish the starting financial position for the investment property (Southport). As you can see, the list is all bank statements (already provided for a limited period) and the settlement details for Southport.

Please let me know if you wish to discuss.

Regards,

Hugo Loneragan
Managing Principal

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I look forward to working with you and your lawyers to help you prepare for the upcoming mediation on 18 June 2024.

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> https://cloud.cantenna.xyz/s/YZidM9QWF7jYNMs
>
> Request to modify | x4 Interest Rate Notices Rocket Repay Home Loan 037-149 51-2919
> https://cloud.cantenna.xyz/s/d88zJknrbLtGC5e
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> f) Heather Disclosures April 9 2024
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> <GamePlan_11062023_103510-1.pdf>

2 attachments

PastedGraphic-5.png
11K

Cooke - preliminary document request 21 May 2024.docx
24K

Stephen Cooke <stephencooke.c@gmail.com> Mon, May 20, 2024 at 11:22 PM
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Cc: Hugo Loneragan <hugo@resolveforensic.com.au>

Hi Matthew,

Please see below and attached for further action.

Best regards,

Stephen

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

[Quoted text hidden]

Hugo Loneragan
Managing Principal

[Quoted text hidden]

2 attachments



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11K

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24K

Stephen Cooke <stephencooke.c@gmail.com> Sat, Jun 1, 2024 at 3:28 AM
To: Hugo Loneragan <hugo@resolveforensic.com.au>, Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Hi Hugo, Matthew,

I have amalgamated and sorted the disclosures I have access to in the attached "b) Stephen Disclosures"

b) Stephen Disclosures.zip

I'll be updating this periodically here;
https://cloud.cantenna.xyz/s/fnWFtnbbS9ANj8K

On Monday I'll visit my Westpac branch and request all financial statements dating back to 2018 relating to the mortgages I am allowed to have access to such as:
1) Fixed rate Loan - 037173 216802
2) Variable Rate Loan - 037173 25 7671
3) Variable Rate Loan - 037173 25 7778

Additionally, please see attached "Financial Disclosure Checklist As of June 1 2024.xlsx"

Matthew, the "Funds Removed By Heather" tab provides clarity regarding the 29k mystery. Basically, it was not accurately reported in the attached "Initiating Application (unsealed) filed 5.12.2023-1.pdf" and unfortunately filed with the court incorrectly.

The 'Funds Removed by Heather' tab reflects the amounts as of November 7th *(that day, I visited our Westpac branch to gather more information about the mortgage accounts and received the attached 'Westpac Accounts 07-11-23.pdf.' This visit occurred the day after Heather presented the Game Plan document for my signature, I didn't get much sleep that night and was quite anxious to visit the bank to better understand what was being asked of me by Heather.)*

The 'Funds Removed by Heather' tab also reflects the amounts as of November 17th date of separation (still under one roof)

In the same tab, "Revoked My Access" refers to as of March 25 2024, I no longer had access to these accounts.

Tab "Financial Disclosure Checklist" summarizes the financial documents we have and notes what we still need to secure from the OS or the court.

Additionally, both please take note of "My Concerns" and "Strategy" tabs/worksheets. This is what I ultimately wish to discover and why I feel it is important which may assist as a reasonable grounds to make such requests.

Regards,

Stephen

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

[Quoted text hidden]

[Quoted text hidden]

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[Quoted text hidden]

4 attachments

Westpac Accounts 07-11-23.pdf
186K

Initiating Application (unsealed) filed 5.12.2023-1.pdf
993K

GamePlan_11062023_103510-1-1.pdf
3564K

Financial Disclosure Checklist As of June 1 2024.xlsx
213K

Hugo Loneragan <hugo@resolveforensic.com.au> Mon, Jun 3, 2024 at 1:43 AM
To: Stephen Cooke <stephencooke.c@gmail.com>
Cc: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Thanks Stephen, I will review these documents tomorrow morning and revert with any questions.

Hugo

Hugo Loneragan

Managing Principal

Resolve.
Forensic

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Stephen Cooke <stephencooke.c@gmail.com> Fri, Jun 7, 2024 at 1:18 AM
To: Hugo Loneragan <hugo@resolveforensic.com.au>
Cc: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Hi Hugo, Matthew,

I've updated the disclosures with statements for the home loans going back to 2018

See
https://cloud.cantenna.xyz/s/fnWFtnbbS9ANj8K
or
attached below

b) Stephen Disclosures June 7 2024.zip

Regards,

Stephen

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[Quoted text hidden]

Matthew Shepherd <mshepherd@ramsdenlaw.com.au> Fri, Jun 7, 2024 at 1:49 AM
To: Stephen Cooke <stephencooke.c@gmail.com>, Hugo Loneragan <hugo@resolveforensic.com.au>

Dear Stephen

Can I just checking we all know what each of us are doing.

I understand you want Hugh to check the home loan statements. I will therefore not duplicate Hugh's work (or your fees) and not go through them – unless you ask.

What I normally look for if I go through them is:

1. Monies moving to or from accounts we do not know about.
2. Any movement of large amounts – other than regular repayments.

Since you call of earlier this afternoon, I have now received two emails from Heather's solicitor. I shall forward them to Stephen in a minute. I presume Stephen will send them to Hugh.

Regards,

MATTHEW SHEPHERD
Acc. Spec. (Family Law) NSW

D: (02) 8123 1229
E: mshepherd@ramsdenlaw.com.au









T: 1300 749 709 | **W:** ramsdenfamilylaw.com.au

A: Level 6, 15 Castlereagh Street, Sydney NSW 2000

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From: Stephen Cooke <stephencooke.c@gmail.com>
Sent: Friday, June 7, 2024 3:18 PM
To: Hugo Loneragan <hugo@resolveforensic.com.au>
Cc: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Subject: Re: Update regarding lawyer

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> Hugo
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Subject: RE: Update regarding lawyer

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What I normally look for if I go through them is:

1. Monies moving to or from accounts we do not know about. **Yes, I wish to know Hugo**
2. Any movement of large amounts – other than regular repayments. **Yes, I wish to know Hugo**

Since you call of earlier this afternoon, I have now received two emails from Heather's solicitor. I shall forward them to Stephen in a minute. I presume Stephen will send them to Hugh.

I see on the correspondence we have just received in a separate email:

*"Regarding "7. We enclose screenshot of our client's bank account ending #2919 showing receipt of
the settlement funds. Our client cannot provide the balance of the documents as they
are not in her possession. Our client verily believes that these documents are in your
client's possession in a storage area. Your client changed the locks and prohibited access to our client shortly after separation."*

Are they serious!? Clearly, mediation cannot proceed until we have reviewed these documents. This disclosure pertains to the condo. After discussing with Hugo an hour ago, it is evident that we need these disclosures to cross-reference the transfers. Without this disclosure Matthew I may very well not comply with the order to sell the home!

By the way, Heather removed her financial documents from the storage area days, if not a week, before she left the marital home. I discussed this previously with my former lawyer. One morning, just before she left, I woke up to find her frantically going through the storage area and taking financial documents. When I asked her about it, she said she needed them for her lawyer and would return them later. However, when she came home that evening without them, she claimed that the documents were hers to keep.

Stephen

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com> Fri, Oct 9, 2026 at 4:01 PM
To: Stephen Cooke <stephencooke.c@gmail.com>

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